



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :

- against - : FINAL

Police Officer Blackson Doxy : ORDER
Tax Registry No. 932573 : OF
Manhattan Court Section : DISMISSAL
-----X

Police Officer Blackson Doxy, Tax Registry No. 932573, having been served with written notice, has been tried on written Charges and Specifications numbered 2022-25853 and 2022-25996, as set forth on form P.D. 468-121, dated May 19, 2022 (amended on April 26, 2023), and June 2, 2022 (amended on April 27, 2023), respectively, and after a review of the entire record, Respondent is found Guilty.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Blackson Doxy from the Police Service of the City of New York.

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER

EFFECTIVE: 8/14/23



POLICE DEPARTMENT

July 21, 2023

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In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	2022-25853
Police Officer Blackson Doxy	:	2022-25996
Tax Registry No. 932573	:	
Manhattan Court Section	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Christine McGrath, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Roger Blank, Esq.
2201 Baxter Lane, Ste. 10295
Bozeman, MT 59718-9998

To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2022-25853

1. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about and between May 12, 2022 and May 15, 2022, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer contacted an individual known to the Department via telephone and threatened said individual.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 240.30(1)(a)

AGGRAVATED HARASSMENT
IN THE SECOND DEGREE

2. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about July 17, 2021, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer engaged in a verbal and physical altercation with an individual known to the Department. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 120.00(1)

ASSAULT IN THE THIRD
DEGREE

N.Y. Penal Law § 240.30(4)

AGGRAVATED HARASSMENT
IN THE SECOND DEGREE

N.Y. Penal Law § 240.26(1)

HARASSMENT IN THE SECOND
DEGREE

3. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about July 17, 2021, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer threatened an individual known to the Department, while displaying a knife. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 120.14(1)

MENACING IN THE SECOND
DEGREE

4. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about July 17, 2021, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer damaged property of an individual known to the Department, with a knife. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 145.00(1)

CRIMINAL MISCHIEF IN THE
FOURTH DEGREE

5. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about March 1, 2022, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer engaged in a physical altercation with an individual known to the Department.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 120.00(1)

ASSAULT IN THE THIRD
DEGREE

N.Y. Penal Law § 240.30(4)

AGGRAVATED HARASSMENT
IN THE SECOND DEGREE

N.Y. Penal Law § 240.26(1)

HARASSMENT IN THE SECOND
DEGREE

6. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about January 21, 2022, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer engaged in a physical altercation with an individual known to the Department.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 120.00(1)

ASSAULT IN THE THIRD
DEGREE

N.Y. Penal Law § 240.30(4)

AGGRAVATED HARASSMENT
IN THE SECOND DEGREE

N.Y. Penal Law § 240.26(1)

HARASSMENT IN THE SECOND
DEGREE

7. Police Officer Blackson Doxy, while off-duty and assigned to Headquarters Security Unit, on or about July 17, 2021, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer threatened an individual known to the Department, while displaying a firearm. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 120.14(1)

MENACING IN THE SECOND
DEGREE

Disciplinary Case No. 2022-25996

1. Police Officer Blackson Doxy, while off-duty, on suspension, and assigned to Headquarters Security Unit, on or about and between May 20, 2022 and May 24, 2022, engaged in conduct prejudicial to the good order, efficiency, and/or discipline of the Department, to wit: said Police Officer violated a Kings County Criminal Court Order of Protection in favor of an individual known to the Department. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 215.50(3)

CRIMINAL CONTEMPT IN THE
SECOND DEGREE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 16 and June 23, 2023. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Keisha Doxy as a witness. Respondent called Peguy Sommervil as a witness, and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of all charges, and recommend that his employment with the New York City Police Department be terminated.

ANALYSIS

On May 15, 2022, Keisha Doxy called the police alleging that Respondent, to whom she has been married since 2008, had made a threatening phone call to her demanding that she leave the Brooklyn apartment in which they both resided, or he would harm her in ways that were worse than before. In her statement to the police, Ms. Doxy made additional accusations, claiming that on several occasions during the course of the previous year, she was the victim of physical altercations at the hands of Respondent. It also is alleged that subsequent to his arrest in this matter, Respondent violated a criminal court order of protection ("OOP") by speaking with

Ms. Doxy during a three-way phone call arranged by a third party. The alleged incidents will be considered separately, in chronological order.

July 17, 2021 incident

Keisha Doxy testified that on July 17, 2021, she arrived home, where an angry Respondent confronted her about money from a property they had just sold. Specifically, they had sold a house in Florida, and Ms. Doxy had deposited the proceeds into her own account. According to Ms. Doxy, the property had been jointly owned, but she had put up the money for it. Respondent demanded that she provide him a certified check for \$60,000 from the proceeds of the sale; Ms. Doxy testified that he needed the money to purchase a business with a retired police officer friend, though in her interview with IAB on May 15, 2022, she stated that Respondent said he needed the money for taxes on the sale. When Ms. Doxy refused to give him the \$60,000, Respondent screamed and cursed at her, and took out his firearm, which he placed on top of a table. It was getting late, and Ms. Doxy wanted to end the conversation, so she decided to take a shower and go to bed. (Tr. 45-51, 130-34, 172)

However, when she emerged from the shower, Respondent pointed the gun at her face. Ms. Doxy testified that Respondent stated "I'm going to fuckin' kill you if you don't give me that money." He waved the gun at Ms. Doxy, and added, "Do you think you're going to stay here without giving me the money?" Ms. Doxy was afraid for her life, and backed away from Respondent. She told him she would write him a check, but Respondent insisted that it be a certified check from the bank. It was after midnight and Ms. Doxy was tired and scared, so she got into her bed, but Respondent threw a jug of water onto the bed and told her he was not going to let her sleep. He grabbed a knife from the kitchen, and started stabbing the mattress while Ms.

Doxy was still on it, and she was afraid that he would stab her as well. Ms. Doxy denied that she was the one who initially pulled the knife on Respondent. (Tr. 51-56, 140-41, 146-47, 168, 170-71)

According to Ms. Doxy, Respondent repeated that he did not want her to be there any longer, and started removing her clothes from a closet. He then tackled Ms. Doxy to the floor and repeatedly punched and kicked her, covering her body with a pillow in order to prevent visible bruising. Ms. Doxy testified that her body was in pain, she sustained various scratches and scrapes, and she was terrified and feared for her life. Photographs show bruising to her lower thigh, lower leg, and lower arm (Dept. Exs. 5A-5C); Ms. Doxy denied that the big knot on her leg depicted in Dept. Ex. 5A was actually a birthmark. When she stopped fighting back, the altercation ended, and she was able to go to sleep. According to Ms. Doxy, the entire incident lasted more than five hours, and it was late at night by the time it ended, so she had to wait until the morning to get a certified check from the bank for Respondent. (Tr. 56-61, 67-69, 142-43, 156, 171-72)

Ms. Doxy recorded a portion of the interaction with her phone; the footage (Dept. Exs. 3 & 4) shows Respondent holding a knife in his hand, and taking Ms. Doxy's clothes from a closet. She testified that she did not call 911, nor did she seek medical treatment, because she did not want her husband arrested or fired – she just wanted him to stop. (Tr. 62-66, 137-38, 143-46)

Respondent testified that he never threatened to stab or kill Ms. Doxy. He also denied that he displayed or threatened Ms. Doxy with his firearm, or that he caused any bruising to her body; indeed, he claimed that the dark spot on her leg depicted in Dept. Ex. 5A was a birthmark, not a bruise. According to Respondent, he and Ms. Doxy had an agreement that he would receive \$60,000 in order to cover the capital gains tax on the sale of the Florida property. She

told Respondent to come to the apartment, and she would give him a check. In the middle of the night, Ms. Doxy woke up and told Respondent that she would not give him \$60,000. She offered instead to give him \$100,000 if he agreed to stay with her and work out their relationship.

Respondent replied that he did not want \$100,000, and that he just needed the \$60,000 for the taxes. (Tr. 225-26, 232, 236, 252, 255-56)

According to Respondent, this response angered Ms. Doxy. She grabbed a kitchen knife, and so he picked up a pillow to protect himself. He was able to get the knife away from her, and their argument moved into the bedroom. Respondent testified that he held the knife with the blade down the entire time, so as not to threaten Ms. Doxy with it. At some point, he sat on the bed, with the knife still in his hand. He was upset that she was not giving him the money, and stabbed the bed with the knife, telling Ms. Doxy, "Everything in the house belongs to me." He claimed that Ms. Doxy was not sitting on the bed at the time. Respondent offered into evidence a receipt (Resp. Ex. J) confirming he purchased the mattress. (Tr. 226-27, 231, 245-47)

Respondent conceded that he removed Ms. Doxy's clothes from the closet, since he was upset with her for going behind his back to deposit the proceeds of the property sale into her account, and for lying to him about having a check ready for him at the apartment. Respondent did not trust Ms. Doxy, and wanted her out of the apartment. He noted that he had been asking her to move out since 2019, when he caught her texting with another guy, which she tried to conceal by changing the name on her phone of the guy texting her to a girlfriend's name. Respondent denied that he damaged her clothes, and even offered to help pack her belongings in the car. In the morning, Ms. Doxy provided a check to Respondent (*see* Resp. Ex. K) so he could pay the taxes, and he flew to Florida later that same day. (Tr. 231-32, 240, 244, 258-63)

January 21, 2022 incident

Ms. Doxy testified that on January 21, 2022, she and Respondent were home. Ms. Doxy was concerned that Respondent was collecting rent on one of their jointly-owned properties but not paying the mortgage. They argued, and Respondent pinned her down and broke the nail off of the nail bed of her pinky finger. Specifically, Ms. Doxy had fake nails attached to her fingers, and when Respondent pulled back on the fake nail attached to her left pinky, he broke the real nail off of her nail bed as well, with only a small portion still attached (*see* photographs, Dept. Exs. 6A-6E, 7). The pain was “excruciating,” and Ms. Doxy passed out. Later, Ms. Doxy tried to reattach her nail by wrapping it with gauze and tape, and applied ointment. However, the pain was still bad a couple of days later, and when she banged her finger against the steering wheel of her vehicle she could not bear the pain any longer. Ms. Doxy went to an urgent care center and received injections to numb the area. Before going to the center, Ms. Doxy texted one of the photographs (Dept. Ex. 6B) to Respondent, which she took from inside her car, in order to alert him that the finger was not healing and that she needed to seek treatment. (Tr. 71-81, 151-55, 169, 175-76)

Respondent testified that he did not bend back Ms. Doxy’s fingernail, or have anything to do with that injury. A couple days later she sent him a photograph of the broken nail, and claimed he caused it; he responded that the injury did not come from him. According to Respondent, the photograph was taken from inside her car, as she was driving for work. (Tr. 234-36, 253-54)

March 1, 2022 incident

Ms. Doxy testified that on March 1, 2022, she was at home, speaking with her friend on the phone. Ms. Doxy was complaining that Respondent’s mother had just passed away, and

Respondent was demanding that Ms. Doxy pay money toward the funeral expenses in order to come to the funeral. She was not aware that Respondent was home until he burst through the door and started cursing at her regarding her phone conversation. As he charged toward her, Ms. Doxy slapped Respondent in the face because she believed he was coming to attack her. Respondent tackled her to the floor, sat on her stomach, and punched Ms. Doxy about her body, again covering the body with a pillow. Ms. Doxy testified that some punches missed the pillow since she was moving. He also pressed down on her neck with his arm, making it difficult to breathe, and causing bruising to her neck. Her whole body was aching, and she thought she would pass out. Respondent also pulled back four of her fingers, breaking the index finger of her right hand; Ms. Doxy heard a “pop” as this was happening (*see* photographs of injuries, Dept. Exs. 8A-8E). (Tr. 82-91, 147-48, 168)

Again, Ms. Doxy did not immediately seek medical treatment, and did not call the police. She testified that Respondent had told her several times that if she reported him, she would get arrested and lose her job as an Access-A-Ride driver for the Administration for Children’s Services. However, after Respondent’s arrest in May (to be discussed below), Ms. Doxy went to have her finger x-rayed, and it was placed in a splint. She stated that to this day, she cannot fully bend her finger. (Tr. 92-93, 148-50)

Respondent testified that he was standing in the doorway for 20-25 seconds while Ms. Doxy, who was unaware of his presence, was on the phone with her friend. When she noticed him, she jumped up in shock, and slapped him. Ms. Doxy kept coming toward him, so Respondent held her arms and pushed her away. Respondent did not initiate any of the physical contact with Ms. Doxy, and was merely acting defensively. He denied that he broke her finger during this altercation. (Tr. 233-34, 247-48)

May 15, 2022 incident

Ms. Doxy testified that early on the morning of May 15, 2022, while she was working, Respondent called and told her that he had packed her stuff in a garbage bag, and she needed to leave the Brooklyn condo or he would “fuck [her] up.” If she did not comply, she would get “more than what [she] got from the last time.” Respondent also offered to put her up in another apartment. The condo was owned by Respondent, but they had lived there together for over three years. Ms. Doxy stopped by the apartment later that day and saw that her possessions had, indeed, been stuffed into a garbage bag, which she photographed (Dept. Ex. 1). (Tr. 40-43, 70, 137-38, 140)

Respondent’s threat worried Ms. Doxy, since Respondent had been abusive to her multiple times in the past (as discussed above), and she could not imagine what he might do to her that was even worse. Fearing for her life, Ms. Doxy called 911; in the call, she stated that her husband wanted her to leave the apartment, but she did not want to leave. Ms. Doxy testified that when the responding officers arrived, she informed them that Respondent had packed up her belongings and was threatening her. Her interaction with those officers, during which she also stressed that she wanted access to their accounts in order to pay the mortgages on their properties, was captured in the BWC footage of Officer Woods (Resp. Ex. I). In the video, Ms. Doxy can be heard telling the officers that she did not report any prior incidents because she did not want to get Respondent in trouble. Ms. Doxy then went to the police precinct, met with IAB, and informed them of the previous altercations with Respondent. (Tr. 41-44, 162-64, 170)

Respondent testified that he did have conversations with Ms. Doxy about a Connecticut property she had purchased. According to Respondent, they had an agreement whereby she would move out of the Brooklyn apartment once the Connecticut purchase was complete.

However, even after the purchase, Ms. Doxy refused to provide a specific date for when she would leave. Respondent conceded that he was upset and placed her clothes into plastic bags, but he denied that he threatened her. Nevertheless, Respondent was arrested, and the criminal charges are still pending. (Tr. 224, 241, 256)

May 20-24 incidents

Ms. Doxy testified that after Respondent's arrest, she received an order of protection ("OOP") requiring Respondent to avoid contact with her (Dept. Ex. 10). She reached out to Peguy Sommervil, a retired police officer who knew both Respondent and Ms. Doxy, and informed him of the arrest. They spoke on the phone several times over the next few days, and he advised her what she needed to say in order to have the criminal charges against Respondent dismissed. Ms. Doxy initially was considering dropping the charges, since she felt bad that Respondent could lose his pension. (Tr. 94-95, 99, 158)

Portions of some of the calls between Ms. Doxy and Sommervil were recorded and admitted into evidence (Resp. Exs. A-D). In those calls, Ms. Doxy voices financial concerns, such as how it was preferable to register an investment property in Respondent's name so that her children's college would not know her full income (Resp. Ex. A). In another call, Ms. Doxy suggests that Sommervil can act as an intermediary in communications between her and Respondent (Resp. Ex. B). In a third call, Ms. Doxy complains that Respondent is disrespectful toward her. She also discusses that Respondent does not know how to forgive her for an affair she had (Resp. Ex. C). In a fourth call, Ms. Doxy reiterates that even though she has purchased a property in Connecticut, she does not want to move to that location, and prefers to use it as an

investment. She also states her concern that she does not want to start over financially (Resp. Ex. D). (Tr. 108-22, 167)

On two occasions between May 20 and May 24, 2022, Sommervil set up a three-way phone call where Ms. Doxy and Respondent were both on the line; Ms. Doxy denied that she was the one who requested the calls. Ms. Doxy testified that in the first call, which was not recorded, Respondent told her to drop the case, and that he will go to therapy. The second call, which was video-recorded by Ms. Doxy from her car, shows Ms. Doxy's phone as the conversation takes place. (Dept. Ex. 11) Immediately before the call begins, an e-mail dated May 20, 2022, sent by Ms. Doxy to an Assistant District Attorney, is visible on her phone, in which she states, "Blackson Doxy reached out to me by phone yesterday to drop the case." The call from Sommervil then comes through on her phone, and Sommervil asks if he can add Respondent to the call; Ms. Doxy agrees, and Respondent joins the call. Ms. Doxy informs Respondent that she has set up a meeting with the prosecutor to drop the case. Respondent again agrees to receive counseling. (Tr. 97-100, 158-59, 166)

Soon after that conversation, Sommervil called Ms. Doxy to follow up on whether she spoke with the District Attorney's Office. In that call, which was recorded by Ms. Doxy (Dept. Ex. 19), Ms. Doxy informs Sommervil that she had spoken with the prosecutor and set up a meeting, but that the prosecutor had told her that they could proceed with the charges against Respondent even without her cooperation. Sommervil replies that if she does not cooperate they will not have a case, and the prosecutor will likely either offer a plea to a violation or dismiss the charges. Ms. Doxy raises a concern about having to rely on Respondent financially, and Sommervil explains that she can receive a portion of Respondent's pension and 401K, and have

money without having to worry about it. Ms. Doxy asks, “So I must continue with the beating because of the 401K?” (Dept. Ex. 19 at 17:52; Tr. 101-03)

Ms. Doxy testified that ultimately she decided not to meet with the prosecutor, and instead reported the phone calls with Respondent to the police, leading to Respondent’s re-arrest. The BWC footage from one of the responding officers, Sergeant Moragne (Resp. Ex. H), captures their interaction with Ms. Doxy, including Sergeant Moragne stating that she did not believe that Respondent’s actions constituted a violation of the OOP since Ms. Doxy had willingly accepted the calls, thereby violating her own order. (Tr. 101-05, 159-61)

Peguy Sommervil, a retired NYPD police officer, testified that he has known Respondent since childhood, and is friends with Ms. Doxy as well. In May 2022, she texted him news of Respondent’s arrest, and they spoke by phone several times in the ensuing days. According to Sommervil, Respondent did not request any communication with Ms. Doxy, nor did he ask Sommervil to encourage Ms. Doxy to drop the case. The conference call with Ms. Doxy and Respondent was initiated by Ms. Doxy; she wanted Respondent to agree to go to marriage therapy before she would meet with the District Attorney’s Office to drop the charges. Sommervil testified that he was aware of the OOP at the time he set up the three-way phone call, but he did not believe that such a call would be considered a violation of the order. (Tr. 204-14, 220-21)

Respondent acknowledged that he was issued an OOP in court, prohibiting him from having contact with Ms. Doxy, though he claimed that he did not read it closely. He testified that after his arrest, he did not ask Sommervil to contact Ms. Doxy. Rather, it was Ms. Doxy who reached out to him, through their mutual friend Sommervil. Specifically, Sommervil informed Respondent that Ms. Doxy wanted to speak with him: Ms. Doxy was willing to drop

the charges if Respondent committed to attending therapy and to working out their relationship. Respondent agreed, and Sommervil set up the three-way call. Although he was not the one who arranged the call, Respondent conceded that he did participate in it, during which they discussed that Ms. Doxy would meet with an Assistant District Attorney to drop the charges. Respondent was re-arrested following this call, and charged with violating the OOP. (Tr. 236-38, 248-51)

Specifications

Respondent faces a total of eight charges based on the allegations of Keisha Doxy. Counsel for Respondent argues that this is essentially a marital dispute over finances, which more appropriately belongs in family or divorce court. However, even if, as counsel suggests, Ms. Doxy did voice financial concerns throughout the time period in question, this Court cannot ignore the credible evidence that Respondent engaged in repeated acts of physical violence toward his wife.

Ms. Doxy appeared at trial and answered questions willingly. She testified in a detailed, consistent, logical manner regarding multiple altercations with Respondent, and I credit her account. Although Ms. Doxy did not promptly report several of the incidents, or seek immediate medical attention, she credibly explained that she was afraid that if she did so, Respondent would have her arrested and she would lose her job; she also did not want him to be arrested and fired – she just wanted him to stop. Ms. Doxy did, however, produce photographs of some of her injuries, and video footage from one of the incidents, to corroborate her testimony.

It also is noteworthy that even in the recorded conversations where Ms. Doxy discussed possibly dropping the charges, she never said anything to recant the allegations. Rather, she

reinforced the accusations, at one point stating, “So I must continue with the beating because of the 401K?”

With that in mind, we turn to the specific charges, which will be considered chronologically.

Specifications 2, 3, 4, and 7 deal with the incident of July 17, 2021: Specification 2 alleges that Respondent wrongfully engaged in a verbal and physical altercation with Ms. Doxy; Specification 3 charges Respondent with threatening Ms. Doxy while displaying a knife; Specification 4 alleges that Respondent damaged Ms. Doxy’s property with a knife; and Specification 7 charges Respondent with threatening Ms. Doxy while displaying a firearm.

As discussed above, I credit Ms. Doxy’s testimony regarding what occurred in the early morning hours of July 17, and reject Respondent’s self-serving denials. Respondent was angry at her refusal to give him the money he wanted from the sale of the Florida property. During the course of the ensuing altercation, he pointed his firearm at Ms. Doxy and threatened to kill her if she did not give him the money. He also grabbed a knife and stabbed the mattress she was sitting on, which further frightened Ms. Doxy; even if Respondent had originally purchased that mattress, it was the bed in which Ms. Doxy regularly slept, and his damaging of the property was wrongful. A portion of the incident was recorded by Ms. Doxy, showing Respondent holding the knife as he walked about the room and removed her clothes from the closet (Dept. Exs. 3 & 4). Respondent also repeatedly punched and kicked Ms. Doxy about her body. Although he covered some of the punches with a pillow to prevent visible bruising, Ms. Doxy was in pain, and some bruising to her leg and arm was visible (Dept. Exs. 5A-5C).

Even if Respondent genuinely believed he was entitled to the money from the sale of the Florida property, his actions toward Ms. Doxy were dangerously violent and unacceptable. The

record has established, by a preponderance of the credible evidence, that Respondent committed the alleged misconduct. Accordingly, I find him guilty of Specifications 2, 3, 4, and 7.

Specification 6 refers to the incident of January 21, 2022, where Respondent is charged with wrongfully engaging in a physical altercation with Ms. Doxy, during which he bent back her fingernail. I credit Ms. Doxy's testimony that during an argument over one of their properties, Respondent pinned her down and pulled back the fake nail of her left pinky, breaking off her real nail as well. Ms. Doxy described the pain as "excruciating." Photographs in evidence depict the injury to Ms. Doxy's finger, as well as her effort to reattach it (Dept. Exs. 6A-6E, 7).

In light of this credible evidence, I reject Respondent's claim that Ms. Doxy instead injured her fingernail herself while driving. It is noteworthy that according to Respondent's own testimony, Ms. Doxy accused him of causing the injury when she sent him a photograph of her finger a couple of days later. As such, this was *not* an allegation that first came to light at the time of the arrest; rather, Ms. Doxy accused Respondent of causing the injury *right from the start*. The record has established that Respondent wrongfully engaged in a physical altercation with Ms. Doxy on January 21, 2022. Accordingly, I find him guilty of Specification 6.

Specification 5 deals with the incident of March 1, 2022, where Respondent is charged with wrongfully engaging in a physical altercation with Ms. Doxy, during which he caused injuries to her body, including breaking her right index finger. Respondent denied breaking her finger. He also claimed that she initiated the altercation by slapping him, after she noticed him standing in the doorway while she was talking on the phone with a friend. Respondent stated that under the circumstances, his actions toward Ms. Doxy were merely defensive.

However, the initial slap by Ms. Doxy did not justify the dangerous and disproportionate response by Respondent. I credit Ms. Doxy's testimony that she feared Respondent was coming to attack her, which is why she slapped him in the face. Respondent tackled Ms. Doxy to the floor, sat on top of her, and repeatedly punched her about her body, again covering some of the blows with a pillow. He also pressed down on her neck with his arm, making it difficult for her to breathe. During the altercation, Respondent pulled back on Ms. Doxy's fingers, breaking her right index finger in the process; although she did not produce any medical records stating that the finger was broken, at trial Ms. Doxy testified that she still cannot fully bend the finger.

As such, the credible evidence has proven that Respondent wrongfully engaged in a physical altercation with Ms. Doxy. Accordingly, I find him guilty of Specification 5.

Specification 1 refers to the threats allegedly made by Respondent, leading to his arrest. It is charged that on or about and between May 12 and May 15, 2022, Respondent wrongfully threatened Ms. Doxy by telephone. Respondent conceded at trial that he was upset that Ms. Doxy was not leaving the apartment even though she had completed the purchase on a property in Connecticut. He told her by phone that he had packed her belongings in a bag, but denied that he threatened her.

However, as discussed above, I credit the testimony of Ms. Doxy that on the morning of May 15, he called her and stated that he had packed her possessions in a garbage bag, and that she needed to leave the condo or he would "fuck [her] up." He also told her that if she did not comply, it would be worse for her than what happened last time. The threats worried Ms. Doxy, since she could not imagine what he might do that was even worse than what he already had done to her. She called the police, and was transported to the precinct where she made a more detailed statement to members of IAB regarding the various incidents.

The record has established, by a preponderance of the credible evidence, that Respondent wrongfully threatened Ms. Doxy. Accordingly, I find him guilty of Specification 1.

Under *Case No. 2022-25996*, there is one specification, charging Respondent with violating the order of protection that was issued to him in court after his arrest, requiring him to avoid contact with Ms. Doxy. Specifically, Ms. Doxy testified that on two occasions between May 20 and May 24, 2022, a mutual friend, Peguy Sommervil, set up a three-way call with Ms. Doxy and Respondent. In one of the calls, which was recorded by Ms. Doxy (Dept. Ex. 11), Ms. Doxy can be heard stating that she has set up a meeting with the prosecutor to drop the criminal charges. Respondent agrees that he will attend counseling.

Respondent conceded that he participated in this call with Ms. Doxy, but argues that the call was initiated by her, and not at his request. He also stated that he did not read the OOP closely. Nevertheless, Respondent, himself a police officer, was responsible for knowing that he needed to avoid any contact with Ms. Doxy. Even if Ms. Doxy initiated the contact, Respondent could have refused to participate in any such phone call. Instead, he willingly joined at least one telephone conversation, and discussed the status of the pending criminal charges with Ms. Doxy. This conduct constituted a violation of the OOP, and I find Respondent guilty.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel

record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 1, 2003, has been found guilty of each of the charges against him. The Department recommends a penalty of termination from the Department. Counsel for Respondent argues that Respondent has provided 20 years of loyal service to the Department, and he should be allowed to retire.

On the one hand, counsel for Respondent makes several valid points with respect to the charges against his client. Throughout the time period of these incidents, Ms. Doxy often appeared to be motivated by financial concerns. Indeed, some of the difficulties between Ms. Doxy and Respondent seemed to stem from disagreements involving their joint business ventures. In the March 1, 2022 incident, Ms. Doxy was the first to use physical force by slapping Respondent. A third-party witness testified that the three-way phone call in which Respondent violated the OOP was initiated at the request of Ms. Doxy. These were all relevant factors that were considered in assessing the surrounding circumstances of what occurred here.

Nevertheless, as discussed above, Ms. Doxy was a credible witness, describing in great detail the multiple incidents of spousal abuse she suffered at the hands of Respondent. Specifically, in the altercation of July 17, 2021, Respondent physically beat Ms. Doxy about her body. He also pointed his firearm at Ms. Doxy and threatened to kill her if she did not give him the \$60,000 that he wanted. Additionally, he threatened Ms. Doxy with a knife, and even stabbed the mattress of the bed on which she was sitting.

As alarming and troubling as that incident was, there were several similarly disturbing domestic violence altercations that followed. During an argument on January 21, 2022, Respondent pulled back on the fake fingernail attached to Ms. Doxy's pinky, and broke off her

real nail as well, causing excruciating pain. On March 1, 2022, Respondent was upset about a conversation he overheard Ms. Doxy having with a friend, and he beat her about her body. He also pulled back her fingers, breaking the index finger of her hand; more than a year later, Ms. Doxy could not fully bend her finger. On May 15, 2022, Respondent threatened Ms. Doxy that if she did not leave the apartment, he would “fuck her up” in ways that were worse than what he had done to her previously. After his arrest, Respondent further compounded the situation by participating in a three-way phone call with Ms. Doxy in which they discussed how Ms. Doxy could drop the charges, in violation of an OOP requiring him to have no contact with her.

The presumptive penalty for one physical act of Domestic Violence is 30 suspension days, dismissal probation, and counseling. However, Respondent has been found guilty of committing multiple acts of physical violence in which he caused injury to Ms. Doxy, and the aggravated penalty of Termination is warranted. Respondent engaged in an egregious pattern of physical domestic violence, during which he repeatedly victimized and threatened his wife, to the point where she was afraid to report him or to seek the medical attention she needed. For a UMOS, who is sworn to serve and protect, to engage in such behavior is appalling, and Respondent’s continued employment with the Department is untenable. Taking into account the totality of the facts and circumstances in these matters, I recommend that Respondent be DISMISSED from the New York City Police Department.

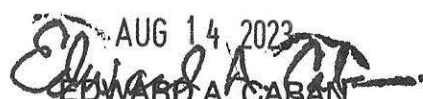
Respectfully submitted,



Jeff S. Adler

Assistant Deputy Commissioner Trials

APPROVED

AUG 14 2023

EDWARD A. CABAN
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER BLACKSON DOXY
TAX REGISTRY NO. 932573
DISCIPLINARY CASE NOS. 2022-25853 AND 2022-25996

Respondent was appointed to the Department on July 1, 2003. On his three most recent annual performance evaluations, he was rated “Exceptional” in 2020, and “Exceeds Expectations” for 2021 and 2022.

Respondent has no disciplinary history. In connection with the instant matters, he was suspended without pay from May 16, 2022 through June 23, 2022. Additionally, he was placed on Level 2 Discipline monitoring on July 21, 2022 until April 21, 2023.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials